BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DODI1400.25V771_DAFI36-706

14 NOVEMBER 2018
Incorporating Change 2, 31 JULY 2025
Certified Current, 31 JULY 2025

Personnel

DOD CIVILIAN PERSONNEL MANAGEMENT SYSTEM: ADMINISTRATIVE GRIEVANCE SYSTEM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: **Publications and forms are available for downloading or ordering on the e-Publishing website at www.e-publishing.af.mil.**

RELEASABILITY: **There are no releasability restrictions on this publication.**

OPR: AF/A1C **Certified by: SAF/MR**

Supersedes: AFI36-1203, 22 May 2014 **Pages: 19**

This publication implements Department of the Air Force Policy Directive (DAFPD) 36-1, *Appropriated Funds Civilian Management and Administration* and supplements Department of Defense Instruction (DoDI) 1400.25, Volume 771, *DoD Civilian Personnel Management System: Administrative Grievance System*." The DoDI is printed word-for-word in regular font without editorial review. Department of the Air Force (DAF) supplementary content follows "(Added)(DAF)." It contains guidance and procedures for considering non-bargaining civilian employee grievances. It reflects the policies of the Secretary of the Air Force concerning matters that are discretionary within DAF. It applies to United States citizen civilian employees of the DAF who are paid from appropriated funds and who are either non-bargaining unit employees, or bargaining unit employees in a unit where no collective bargaining agreement has been negotiated, or where the negotiated procedure excludes the matters at issue. It also applies to supervisors, civilian personnel officers, career Senior Executive Service (SES), Senior Level, Scientific or Professional, and other management officials of both United States Air Force and the United States Space Force. This instruction applies to appropriated fund civilian employees, administered under Title 5 United States Code (USC), including Air Force Reserve personnel, United States citizens assigned to foreign overseas areas, and civilian employees at joint service organizations where Air Force is the executive agent. It does not apply to Air National Guard Technicians administered under Title 32 USC, civilian employees in the Defense Civilian Intelligence Personnel System or Cyber Excepted Service covered under Title 10 USC or

applicants for employment. The Chief of the National Guard Bureau will determine the extent to which this Instruction will apply to the Title 5 National Guard employees of the National Guard Bureau. It also does not apply to matters that employees may appeal to Merit Systems Protection Board or matters covered by Department of the Air Force Instruction (DAFI) 36-2710, *Equal Opportunity Program*. In collaboration with the Chief of Air Force Reserve (AF/RE), the Director of the Air National Guard (NGB/CF), and the Deputy Chief of Space Operations for Personnel (SF/S1), the Deputy Chief of Staff for Manpower, Personnel, and Services (AF/A1) develops personnel policy for Administrative Grievance System programs. This DAF publication may be supplemented at any level; major command and field command level supplements must be approved by the Human Resource Management Strategic Board prior to certification and approval. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) listed above using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate chain of command. The authorities to waive requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures,* Table A10.1, for a description of the authorities associated with the Tier numbers. Submit requests for waivers via DAF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*, through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322*, Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

This instruction requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by Department of Defense Instruction (DoDI) 5400.11, *DoD Privacy and Civil Liberties Programs* and Executive Order (EO) 9397 *Numbering System for Federal Accounts Relating To Individual Persons* as amended (EO 13478). The applicable System of Records Notice OPM/GOVT-1, General Personnel Records is available at https://www.opm.gov/information-management/privacy-policy/sorn/opm-sorn-govt-1-general-personnel-records.pdf

SUMMARY OF CHANGES

This document has been revised for applicability to the DAF, including the United States Space Force. Administrative changes and updated references have been made throughout the document as needed. Additionally, paragraph 3.a.(7) of Enclosure 3, has been modified to comply with Presidential Executive Order 14185, *Restoring America's Fighting Force*. A margin bar (|) indicates newly revised material.

Department of Defense

INSTRUCTION

NUMBER 1400.25, Volume 771
December 26, 2013
Incorporating Change 1, Effective June 13, 2018

USD(P&R)

SUBJECT: DoD Civilian Personnel Management System: Administrative Grievance System

References: See Enclosure 1

1. PURPOSE

~~a.~~ Instruction. This instruction is composed of several volumes, each containing its own purpose. The purpose of the overall instruction, in accordance with the authority in DoD Directive 5124.02 (Reference (a)), is to establish and implement policy, establish procedures, provide guidelines and model programs, delegate authority, and assign responsibilities regarding civilian personnel management within the DoD.

~~b.~~ Volume. This volume:

(1) Reissues subchapter 771 of DoD 1400.25-M (Reference (b)) as a volume of this instruction and establishes the DoD Administrative Grievance System (AGS) in accordance with part 771 of Title 5, Code of Federal Regulations (Reference (c)).

(2) Establishes policy, assigns responsibilities, and prescribes requirements for the DoD AGS under which DoD activities can internally review employee disputes involving working conditions within the control of DoD management.

2. APPLICABILITY. This volume:

~~a.~~ Applies to OSD, the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (referred to collectively in this volume as the "DoD Components").

~~b.~~ Does not apply to DoD employees covered by the Defense Civilian Intelligence Personnel System, whose employee grievance procedures are covered by 1400.25, Volume 2014 (Reference (d)) of this instruction.

3. POLICY. It is DoD policy that:

~~a.~~ In accordance with DoD Directive 1400.25 (Reference (e)), DoD employees will be entitled to present disputes under the DoD AGS; have them considered expeditiously, fairly, and impartially; and be resolved as quickly as possible. All persons involved in the dispute resolution process must be free from restraint, interference, coercion, discrimination, or reprisal.

~~b.~~ Parties are encouraged to use alternative dispute resolution (ADR) techniques to resolve disputes consistent with the requirements of this volume. ADR techniques include a broad range of approaches for dealing with conflict and seeking solutions satisfactory to all parties. These techniques include, but are not limited to, problem solving, mediation, facilitation, conciliation, early-neutral evaluation, fact-finding, settlement conferences, ombudsmen, peer review, and arbitration.

4. RESPONSIBILITIES. See Enclosure 2.

5. PROCEDURES. See Enclosure 3.

6. RELEASABILITY. ~~**Unlimited**. This volume is approved for public release and is available on the Internet from the DoD Issuances Website at http://www.dtic.mil/whs/directives.~~***Cleared for public release.*** *This volume is available on the Directives Division Website at http://www.esd.whs.mil/DD/.*

7. EFFECTIVE DATE. This volume~~:~~ *is effective December 26, 2013.*

~~a. Is effective December 26, 2013.~~

~~b. Must be reissued, cancelled, or certified current within 5 years of its publication to be considered current in accordance with DoD Instruction 5025.01 (Reference (f)).~~

~~c. Will expire effective December 26, 2023 and be removed from the DoD Issuances Website if it hasn't been reissued or cancelled in accordance with Reference (f).~~

Jessica L. Wright
Acting Under Secretary of
Defense for Personnel and Readiness

(Added)(DAF) Gwendolyn R. DeFilippi
Acting Assistant Secretary of the Air Force
Manpower and Reserve Affairs

Enclosures
1. References
2. Responsibilities
3. Procedures

Glossary

TABLE OF CONTENTS

ENCLOSURE 1: REFERENCES 5

ENCLOSURE 2: RESPONSIBILITIES 6

ASSISTANT SECRETARY OF DEFENSE FOR MANPOWER AND RESERVE AFFAIRS (ASD(M&RA)) *6*
DEPUTY ASSISTANT SECRETARY OF DEFENSE FOR CIVILIAN PERSONNEL POLICY (DASD(CPP)) 6
DIRECTOR, DEPARTMENT OF DEFENSE HUMAN RESOURCES ACTIVITY (DODHRA) *6*
DOD COMPONENT HEADS 6
(Added)(DAF) DEPARTMENT OF THE AIR FORCE 6

ENCLOSURE 3: PROCEDURES 9

DOD AGS REQUIREMENTS 9
COVERAGE 9
PROCESS 11

GLOSSARY 16

PART I: ABBREVIATIONS AND ACRONYMS 16
PART II: DEFINITIONS 16
(Added)(DAF) PART III: OFFICE SYMBOLS

ENCLOSURE 1

REFERENCES

(a) DoD Directive 5124.02, "Under Secretary of Defense for Personnel and Readiness (USD(P&R))," June 23, 2008
(b) DoD 1400.25-M, Subchapter 771, "Administrative Grievance System," December 1996 (hereby cancelled)
(c) Part 771 of Title 5, Code of Federal Regulations
(d) DoD Instruction 1400.25, Volume 2014, "DoD Civilian Personnel Management System: Defense Civilian Intelligence Personnel System (DCIPS) Employee Grievance Procedures," March 20, 2012
(e) DoD Directive 1400.25, "DoD Civilian Personnel Management System," November 25, 1996
(f) ~~DoD Instruction 5025.01, "DoD Directives Program," September 26, 2012, as amended~~
(~~g~~*f*) Section 2105 of Title 5, United States Code
(~~h~~*g*) Section 709~~(e)~~*(f)(4)* of Title 32, United States Code
(Added)(DAF) (h) EO 9397 as amended (EO 13478), ***Numbering System for Federal Accounts Relating To Individual Persons,*** **18 November 2008**
(Added)(DAF) (i) DoDI 5400.11, ***DoD Privacy and Civil Liberties Programs,*** **January 29, 2019**
(Added)(DAF) (j) AFPD 36-1, ***Appropriated Funds Civilian Management and Administration,*** **29 August 2023**
(Added)(DAF) (k) AFI 33-322, ***Records Management and Information Governance Program*****, March 23, 2020**
(Added)(DAF) (l) DAFI 36-2710, ***Equal Opportunity Program,*** **23 May 2024**
(Added)(DAF) (m) DAFI 51-1201, ***Negotiation and Dispute Resolution Program,*** **10 February 2023**
(Added)(DAF) (n) DAFMAN 90-161, ***Publishing Processes and Procedures,*** **18 October 2023**

(Added)(DAF) ***Prescribed Forms***
None

(Added)(DAF) ***Adopted Forms***
(Added) (DAF) DAF Form 679, ***Air Force Publication Compliance Item Waiver Request/Approval***
(Added) (DAF) DAF Form 847, ***Recommendation for Change of Publication***

ENCLOSURE 2

RESPONSIBILITIES

1. ASSISTANT SECRETARY OF DEFENSE FOR MANPOWER AND RESERVE AFFAIRS (ASD(M&RA)). Under the authority, direction, and control of the Under Secretary of Defense for Personnel and Readiness, the ASD(M&RA) has overall responsibility for the development of DoD civilian personnel policy covered by this volume.

~~*12.*~~ DEPUTY ASSISTANT SECRETARY OF DEFENSE FOR CIVILIAN PERSONNEL POLICY (DASD(CPP)). Under the authority, direction, and control of the ~~Assistant Secretary of Defense for Readiness and Force Management,~~ *ASD(M&RA),* the DASD(CPP) *supports the development of civilian personnel policy covered by this volume and monitors its execution by DoD Components, ensuring consistent implementation and application throughout DoD.*

~~a. Develops DoD AGS policies and requirements governing DoD civilian personnel.~~

~~b. Monitors the implementation and effectiveness of such policies, develops dispute resolution models, and provides guidance on dispute resolution.~~

3. DIRECTOR, DEPARTMENT OF DEFENSE HUMAN RESOURCES ACTIVITY (DODHRA). Under the authority, direction, and control of the Under Secretary of Defense for Personnel and Readiness, the Director, DoDHRA, supports the DASD(CPP), as appropriate, in execution of the responsibilities assigned in this volume.

~~24.~~ DoD COMPONENT HEADS. The DoD Component heads:

a. Ensure the DoD AGS is implemented in their Component.

b. Develop and implement ADR techniques as appropriate in accordance with this volume.

5. (Added)(DAF) DEPARTMENT OF THE AIR FORCE.

a. (Added)(DAF) Deputy Administrative Assistant to the Secretary of the Air Force/Administration and Management (SAF/AM). SAF/AM as provided by a memorandum titled, "Delegation of Authority – Formal EEO Complaints and Administrative and Negotiated Grievances," signed by the Secretary of the Air Force, dated January 23, 2009, the Deputy Administrative Assistant to the Secretary of the Air Force is authorized to act on behalf of the Secretary in his or her role as second level supervisor on formal complaints filed under the AGS.

b. (Added)(DAF) Assistant Secretary of the Air Force for Manpower and Reserve Affairs (SAF/MR). SAF/MR serves as an agent of the Secretary of the Air Force and provides

guidance, direction, and oversight for all matters pertaining to the formulation, review, and execution of plans, policies, programs, and budgets addressing the AGS. (T-1)

c. (Added)(DAF) Deputy Chief of Staff of the Air Force, Manpower, Personnel and Services (AF/A1). AF/A1 develops, coordinates, and executes personnel policy and essential procedural guidance for the management of the AGS.

d. (Added)(DAF) Air Force Civilian Force Management Directorate (AF/A1C). AF/A1C develops and implements policies that actively promote the AGS within the DAF. Oversees the implementation and administration of the AGS the compliance with DoD regulations and this instruction.

e. (Added)(DAF) Air Force Senior Executive Management Office (SAF/MRL). SAF/MRL provides operational oversight, and administration of the system for all Air Force Civilian Senior Executives. Air Force Senior Executive Management Office serves as the principal policy and technical advisor to Deciding Officials and supervisors and assists them in processing and resolving grievances.

f. (Added)(DAF) Air Force Personnel Center, Directorate of Personnel Programs (AFPC/DPP). AFPC/DPP provides operational oversight, guidance, and training to major commands, field commands, and civilian personnel sections (CPS) on implementation procedures for AGS consistent with this instruction. (T-1)

g. (Added)(DAF) Major Command, Field Command, Direct Reporting Units, Field Operating Agencies, and Combatant Commands. The personnel directors of major command, direct reporting unit, and forward operating agencies will oversee programs and ensure compliance with Department of Defense regulations and this instruction. (T-1)

h. (Added)(DAF) Alternative Dispute Resolution Managers. Assist commanders in setting ADR policies and procedures and promoting the ADR programs among all organizations on the installation. Exercise oversight of the installation workplace ADR program, including conducting case intake, advising employees and management officials of their rights and options with respect to ADR, convening ADR proceedings, assigning neutrals, and coordinating on requests and compulsory processes to disclose confidential ADR communications. (T-1)

i. (Added)(DAF) Commanders and Directors. Commanders and directors, with the assistance of the CPSs, may tailor the AGS to resolve disputes, so long as the changes are consistent with this instruction and in accordance with Department of Defense regulations. Commanders and directors shall implement the AGS. Installation commanders, or their designee(s), except as provided below, will make final written decisions on grievances. Commanders and their designees will promote and implement ADR techniques to resolve workplace disputes under their authority. (T-1)

j. (Added)(DAF) Deciding Officials. Deciding officials make decisions, consistent with the requirements of this instruction, concerning grievances. Grievances will be decided by an official in the grievant's chain of command, except where the grievance concerns matters outside the authority of that chain of command. A deciding official must be assigned to an organizational level higher than any employee involved in the grievance or having a direct interest in the matter being grieved unless the deciding official is the head of a DAF

installation, or activity. Grievances filed by employees of a tenant organization will be decided by an official in the grievant's chain of command, except where the grievance concerns matters outside the authority of that chain of command. (T-1)

k. (Added)(DAF) Legal Advisors. Management should refer to the appropriate Staff Judge Advocate's (SJA) office with regard to any legal implications that arise from an administrative grievance. In the event an administrative grievance could have DAF-wide legal implications (e.g., Fair Labor Standard Act matters), the SJA must coordinate with the Office of the Judge Advocate General Civil Law and Litigation Directorate (AF/JAC) Labor Law Field Support Center (LLFSC). (T-1). For matters involving Civilian Senior Executives, SJA shall notify AF/JAC, who will notify the Office of General Counsel (SAF/GCA).

l. (Added)(DAF) Civilian Personnel Sections. CPS, in conjunction with management, develops procedures in accordance with the system outlined in this instruction. CPS serve as principal policy and technical advisors to Deciding Officials and supervisors and assist them in processing and resolving grievances. This includes assisting deciding officials and supervisors in determining the most appropriate management official to represent the DAF in any ADR proceeding. CPS are responsible for publicizing the grievance process and advising employees regarding grievance procedures. CPS shall promote use of informal resolution techniques to resolve disputes early and at the lowest level possible. (T-1)

ENCLOSURE 3

PROCEDURES

1. DoD AGS REQUIREMENTS

a. DoD employees are entitled to present grievances using the DoD AGS and to communicate with supervisors or managers and officials in their servicing Civilian Personnel Office or Human Resource Office.

b. DoD employees may represent themselves or be represented by someone of their choice. The choice of representative may be denied if it would result in a conflict of interest, conflict with mission priorities, or result in unreasonable costs.

c. DoD employees and their representatives must have full access to relevant information and be given copies of such information upon request, unless to do so would be unduly burdensome or contrary to law or regulation.

d. DoD employees must be permitted a reasonable amount of duty time, if otherwise in a duty status at the employing activity, to present grievances and to communicate with management and personnel officials. Employees may also be given a reasonable amount of duty time to prepare a grievance.

e. (Added)(DAF) Determinations of what constitutes a reasonable amount of duty time will be based on the facts and circumstances of each case. Additional time may be granted to the employee, upon request, when it is shown that circumstances are beyond the grievant's or management's control (e.g., illness, complex issues, workload).

f. (Added)(DAF) The meeting between the employee and his or her representative with the Deciding Official may be conducted by video conference or teleconference if the parties are not co-located.

g. (Added)(DAF) If the employee elects representation, he or she must designate the representative in writing and must notify management in writing of any change in that designation of representation. (T-1)

h. (Added)(DAF) Employees must be notified in writing, as soon as possible, after the decision of any disallowance of a particular representative and provided rationale for the disallowance. (T-1)

2. COVERAGE

a. Employee Coverage. The DoD AGS:

(1) Covers current appropriated fund nonbargaining unit DoD employees as defined in

section 2105 of Title 5, United States Code (Reference (*f*)). It also covers former appropriated fund nonbargaining unit DoD employees with respect to matters arising during their previous employment at the activity, provided that a remedy is available consistent with applicable law and regulation.

(2) Covers bargaining unit employees when a matter covered by the DoD AGS cannot be grieved under a negotiated grievance procedure (NGP), either because an NGP is not in effect at the relevant time or because it does not cover the matter being grieved.

(3) Does not cover reinstatement and transfer-eligible candidates who have applied for a position under a merit promotion program, non-citizens recruited overseas and appointed to overseas positions, or nonappropriated fund employees.

b. Subject Matter Coverage. Any employment matter may be grieved under the DoD AGS except:

(1) The content of established DoD and DoD Component regulations and policies.

(2) Any matter:

(a) Covered by an NGP or subject to formal review and adjudication by the Merit Systems Protection Board, the Office of Personnel Management, the Federal Labor Relations Authority, or the Equal Employment Opportunity Commission.

(b) Filed by the DoD employee under another review or reconsideration procedure or dispute resolution process within the DoD.

(3) Nonselection for promotion from a group of properly ranked and certified candidates or failure to receive a noncompetitive promotion.

(4) Preliminary notice of an action that, if effected, would be covered under the grievance system or excluded from coverage by paragraph 2b(2) of this enclosure.

(5) The substance of an employee's performance elements, standards, or work objectives.

(6) Determinations concerning awards, additional step increases, recruitment, relocation, or retention incentives; physicians' comparability or additional pay allowances; supervisory differentials; critical position pay; or dual compensation waivers.

(7) Any action taken under a voluntary formal agreement entered into by an employee involving geographic relocation or return from an overseas assignment.

(8) Termination of a probationer, return of an employee serving supervisory or managerial probation to a nonsupervisory or non-managerial position, or separation or termination of an employee during a trial period.

(9) Senior Executive Service (SES) employees' performance evaluations and awards (including meritorious or distinguished executive rank awards), reassignment following receipt of an unsatisfactory rating, return to another pay system during the 1-year period of probation

or for less than fully successful executive performance or for failure to be recertified, conditional recertification, or termination during probation for unacceptable performance.

(10) Termination or expiration of a time-limited excepted appointment, a term or temporary appointment or promotion, or an SES limited emergency or limited term appointment, on the date specified as a condition of employment at the time the appointment or promotion was made.

(11) The termination of a temporary or term promotion at a time other than in paragraph 2b(10) of this enclosure, provided the employee was informed in advance of the temporary nature of the appointment or promotion and the employee was returned to his or her former position from which temporarily promoted or to a different position of equivalent grade and pay.

(12) SES, Senior Level, or Scientific and Professional pay rate changes.

(13) A separation or termination action.

(14) Any action taken pursuant to section 709*(f)(4)* of Title 32, United States Code (Reference (*g*)) involving National Guard technicians.

(15) Any additional exclusions as requested by a DoD Component and approved by the DoD.

(16) (Added)(DAF) The content of established agency regulation and policy (e.g., DAFI).

(17) (Added)(DAF) The separation or termination from a permanent position, except as provided for DoD Instruction 1400.25-V2014, *DoD Civilian Personnel Management System: Defense Civilian Intelligence Personnel System (DCIPS) Employee Grievance Procedures*.

(18) (Added)(DAF) An allegation of reprisal or other whistleblowing complaints that are subject to review and adjudication by the Inspector General or Office of Special Counsel.

(19) (Added)(DAF) Determinations concerning suggestions or inventions.

c. Time Limits. When calculating time limits under the DoD AGS:

(1) The day of an action or receipt of a document is not counted. The next day begins the calculation of the time limit.

(2) The last day of the time limit is counted unless it is a Saturday, a Sunday, a government holiday, or a day on which the employee is not regularly scheduled to work. In those cases, the last day of the time limit will be moved to the next regularly scheduled work day.

(3) All time limits are counted in calendar days.

d. Grievance File. The activity will establish and maintain a separate file for each written grievance filed under the DoD AGS and retain it for 4 years in accordance with applicable laws, regulations, and records retention schedules. The file contains all documents or copies of documents related to the grievance.

(1) (Added)(DAF) Grievance files will be retained within the CPS and may be destroyed no sooner than 4 years but no later than 7 years after the case is closed. (T-1)

3. PROCESS. This section details the basic mandatory processes of the DoD AGS. Installation commanders and management officials with delegated appointing authority may tailor the DoD AGS to meet local needs, but they must comply with the policies and requirements in this volume and retain the rights, responsibilities, and time frames in the DoD AGS. Continued use of ADR techniques throughout the DoD AGS is encouraged.

a. Problem-Solving Process

(1) An employee may informally present a work-related problem to his or her immediate supervisor before filing a formal grievance.

(2) If the problem involves a matter or action directly involving that supervisor, and the employee has been unable to resolve the matter with that supervisor, the employee may present the matter to the next level supervisor, if any, within the DoD Component, installation, or activity.

(3) The problem must be presented within 15 days following the date of the act or event that the employee believes created the problem, or the date the employee became aware of (or reasonably should have become aware of) the act or event. The employee may present a matter of concern regarding a continuing practice or condition at any time.

(4) A supervisor must consider the employee's problem and attempt to resolve it within 15 days and no later than 30 days from the date the problem is first brought to the supervisor's attention, even though it may not be covered by the grievance process. Where appropriate, the use of a neutral party (e.g., conciliator, facilitator, or mediator) is encouraged.

(5) If the employee presents the problem orally, the supervisor's determination may be oral or written. If the problem is presented in writing, the determination must be in writing. If the problem was not resolved, the supervisor must inform the employee of the time limits for filing a grievance. If the supervisor determines the matter is not covered by the grievance process, the supervisor must so inform the employee and advise the employee of the appropriate process, if any, for resolving the problem.

(6) The time limit for resolving the problem as described in paragraph 3a(4) of this section may be extended by mutual agreement to accommodate resolution of the dispute.

(7) (Added)(DAF) Allegations of discrimination, or preferential treatment, based on race, color, religion, sex, pregnancy, national origin, age (40 or older), disability, genetic information, or retaliation for prior Equal Employment Office activity.

(a) (Added)(DAF) The Deciding Official will hold the grievance (to include those identified during the informal, problem-solving process) in abeyance and refer the allegation of discrimination to the activity's Equal Opportunity Director. (T-1) The Deciding Official will notify the employee, the employee's representative, and the CPS in writing of the referral. (T-1)

(b) (Added)(DAF) If the grievant withdraws the allegations of discrimination and requests further processing under the AGS, the Deciding Official will resume processing the grievance and notify all parties in writing. (T-1) If the grievant files a formal discrimination complaint, or does not withdraw the allegations of discrimination in the grievance and requests further processing under the AGS, the Deciding Official will cancel the grievance. (T-1)

b. Grievance Process

(1) An employee may file a formal, written grievance with the designated Deciding Official (or any official designated to accept grievances on behalf of the Deciding Official) when a problem is not resolved during the problem-solving process or where the employee chooses to bypass that process and invoke the grievance process.

(2) If the employee used the problem-solving process, the employee must file a grievance no later than 15 days from the conclusion of that process.

(a) Where the employee does not use the problem-solving process but raises the matter initially as a grievance, the employee must present the grievance within 15 days following the date of the act or event that the employee believes created the problem, or within 15 days following the date the employee became aware of (or reasonably should have become aware of) the act or event.

(b) The employee may present a grievance regarding a continuing practice or condition at any time.

(3) An employee's grievance must be signed, dated, and contain a sufficiently detailed statement of the specific issue(s) and the specific, personal remedy sought.

(a) Copies of any documents in the employee's possession related to the grievance; and the name, address, and telephone number of the employee's representative, if any, must be included.

(b) The remedy must be personal to the employee and may not include a request for disciplinary or other action affecting another employee.

(c) An employee may not grieve the same matter raised in any other grievance, appeal, complaint, or other dispute resolution process.

(4) The Deciding Officials will make decisions concerning grievances consistent with the requirements in this volume. A Deciding Official must be assigned to an organizational level higher than any employee involved in the grievance or having a direct interest in the matter being grieved unless the Deciding Official is a DoD Component head or head of an installation

or activity.

(5) The Deciding Official will determine whether to join similar or identical grievances; whether to require, and how to conduct an investigation; whether to allow the grievant's requested representative; and how much duty time will be granted to the employee and the employee's representative. The Deciding Official may also designate an impartial individual to examine a grievance and, when authorized, to make recommendations concerning its disposition.

(6) The Deciding Official must fully and fairly consider the grievance and issue a written decision with supporting rationale for the decision.

(a) The Deciding Official will issue the decision as soon as possible but normally no later than 60 days from the filing of the grievance.

(b) The Deciding Official may extend time frames up to 30 additional days when warranted by special circumstances (e.g., when those involved are geographically dispersed or where a fact-finder is used in the process). However, a grievance decision should be rendered no more than 90 days from the filing of the grievance absent mutual agreement to extend this time limit to accommodate resolution of the dispute.

(c) If the Deciding Official fails to render a decision within 90 days absent such mutual agreement, the grievant may request review by the next higher management level, if any, within the DoD Component.

(d) (Added)(DAF) If the grievance is cancelled, the Deciding Official should also give the reasons in writing for the decision.

(e) (Added)(DAF) The Deciding Official may designate a fact-finder. The fact-finder must not have been involved in the grievance or have a direct interest in the matter being grieved. (T-1) The official shall also decide the scope of the investigation (e.g., whether to require a report of fact, a report of facts with analysis, or report of fact with analysis and recommendations). (T-1) The grievant will be provided an opportunity to review and comment on the report prior to final consideration by the Deciding Official. (T-1)

(7) Wherever possible, the Deciding Official should rule on the merits of a grievance. However, the Deciding Official may cancel or temporarily suspend a grievance, or a specific portion of a grievance, if:

(a) The grievant requests such action.

(b) The grievant or grievance is excluded from coverage.

(c) The grievant fails to provide sufficient detail to identify clearly the matter being grieved or specify the personal relief requested.

(d) The grievant fails to comply with applicable time limits or procedural requirements or requests actions be taken against another employee; or

(e) The grievant raises the same matters under another formal dispute resolution

process.

(8) A Deciding Official's decision on the merits of the grievance is final and not subject to further review.

(9) An employee may request that an individual at the next higher management level, if any, within the DoD Component, installation, or activity review a decision to cancel a grievance.

(a) (Added)(DAF) Requests for review by the grievant will be sent to the CPS for consideration of appropriateness of higher-level review of a decision only if the Deciding Official fails to respond within 90 calendar days absent a mutual agreement between the Deciding Official and grievant, or if the Deciding Official cancels the grievance without a decision on its merits.

(b) (Added)(DAF) A higher level review is not authorized if the Deciding Official is the Deputy Administrative Assistant to the Secretary of the Air Force, acting on behalf of the Secretary in his or her role as second level supervisor on formal complaints filed under the Administrative Grievance Procedures. Decisions made by the Deputy Administrative Assistant to the Secretary of the Air Force in that capacity are final.

(10) (Added)(DAF) ADR techniques should be utilized to the maximum extent possible with the consent of the grievant and Deciding Official or supervisor. ADR reduces the time, costs of settling disputes, and empowers grievant and Deciding Officials to resolve issues more expeditiously. ADR may be attempted at any stage of the grievance process; however, it is most successful when initiated early or when the dispute is raised. If ADR is attempted at any stage of the grievance process, the timeframe for a response is placed on hold pending outcome of ADR. Information about ADR should be made available to the parties in accordance with DAFI 51-1201, *Negotiation and Dispute Resolution Program*.

GLOSSARY

PART I. ABBREVIATIONS AND ACRONYMS

ADR	Alternative Dispute Resolution
AGS	Administrative Grievance System
ASD(M&RA)	Assistant Secretary of Defense for Manpower and Reserve Affairs
CPS	Civilian Personnel Section
DAF	Department of the Air Force
DASD(CPP)	Deputy Assistant Secretary of Defense for Civilian Personnel Policy
DoDHRA	Department of Defense Human Resources Activity
LLFSC	Labor Law Field Support Center
NGP	Negotiated grievance procedure
SES	Senior Executive Service
SJA	Staff Judge Advocate

PART II. D EFINITION

This term and its definition are for the purposes of this volume.

Administrative grievance. A request by an employee or group of employees acting as individuals for personal relief in a matter of concern or dissatisfaction regarding their employment subject to the control of DoD management.

(Added)(DAF) PART III. OFFICE SYMBOLS

(Added)(DAF) AF/A1	**Deputy Chief of Staff of the Air Force, Manpower, Personnel and Services**
(Added)(DAF) AF/A1C	**Air Force Civilian Force Management Directorate**

(Added)(DAF) AF/JAC	**Office of the Judge Advocate General Civil Law and Litigation Directorate Labor Law Field Support Center**
(Added)(DAF) AF/RE	**Chief of Air Force Reserve**
(Added)(DAF) AFPC/DPP	**Air Force Personnel Center, Directorate of Personnel Programs**
(Added)(DAF) NGB/CF	**Director of the Air National Guard**
(Added)(DAF) SAF/AM	**Secretary of the Air Force/Administration and Management**
(Added)(DAF) SAF/GCA	**Office of General Counsel**
(Added)(DAF) SAF/MR	**Assistant Secretary of the Air Force for Manpower and Reserve Affairs**
(Added)(DAF) SAF/MRL	**Air Force Senior Executive Management Office**
(Added)(DAF) SF/S1	**Deputy Chief of Space Operations for Personnel**